



Dak Guru

A Self Learning Portal

www.dakguru.com

DoPT INSTRUCTIONS ISSUED FROM TIME TO TIME ON ESTABLISHMENT AND ADMINISTRATION

DISCLAIMER: *This booklet has been prepared strictly from an examination point of view. While every effort has been made to ensure accuracy and the inclusion of recent changes, amendments, and updates to the relevant Acts, Rules, and Regulations, this document is intended as a study aid only. Readers and students are strongly recommended to refer to official government sources or gazettes for the most reliable and authoritative information.*

DoPT INSTRUCTIONS ISSUED FROM TIME TO TIME ON ESTABLISHMENT AND ADMINISTRATION

TOPIC A: DETERMINATION OF SENIORITY OF PERSONS APPOINTED TO SERVICES AND POSTS UNDER THE CENTRAL GOVERNMENT

TOPIC B: PROBATION AND CONFIRMATION IN CENTRAL SERVICES

TOPIC C: GUIDELINES ON DEPARTMENTAL PROMOTION COMMITTEES (DPC)

TOPIC D: DEPUTATION / FOREIGN SERVICE – CONSOLIDATED GUIDELINES

TOPIC E: AD-HOC APPOINTMENTS

TOPIC F: COMPASSIONATE APPOINTMENTS

TOPIC G: CCS (CONDUCT) RULES, 1964 – KEY PROVISIONS

TOPIC H: CCS (CCA) RULES, 1965 – FRAMEWORK OVERVIEW

TOPIC I: PREMATURE RETIREMENT UNDER FR 56(j) – PERIODIC PERFORMANCE REVIEW

TOPIC J: SUPERANNUATION / VOLUNTARY RETIREMENT / RESIGNATION / EXTENSION IN SERVICE

TOPIC K: AEBAS & e-HRMS / e-SERVICE BOOK

TOPIC L: iGOT KARMAYOGI PLATFORM

TOPIC A: DETERMINATION OF SENIORITY OF PERSONS APPOINTED TO SERVICES AND POSTS UNDER THE CENTRAL GOVERNMENT

Para 1. Instructions for determination of seniority in Central Civil Posts/Services have been issued from time to time. These principles shall apply to the determination of seniority in Central Civil Services and Civil Posts except for such Services and Posts where separate principles have already been laid down or may be issued by the Government. The following paragraphs indicate the principles for determining seniority of persons appointed to services and posts under the Central Government:—

2. SENIORITY OF DIRECT RECRUITS AND PROMOTEEES

2.1. SENIORITY OF DIRECT RECRUITS

Para 2.1.1 The relative seniority of all direct recruits is determined by the order of merit in which they are selected for such appointment on the recommendations of the U.P.S.C. or other selecting authority, persons appointed as a result of an earlier selection being senior to those appointed as a result of subsequent selection. The relative seniority that used to be determined earlier according to the date of confirmation and not the original order of merit, (in case where confirmation was in an order different from the order of merit indicated at the time of their appointment), in accordance with the general principles of seniority, has been discontinued **w.e.f. 4.11.1992**. The general principles of seniority therefore stands modified to that extent.

2.1.2 Inter-se seniority of candidates — Appointment from the Reserve panel at a later date:

The inter-se seniority of candidates nominated from reserve panel will be fixed as per consolidated merit given by Union Public Service Commission (UPSC)/Staff Selection Commission (SSC)/ Recruiting agency (RA). However, following instructions would apply in operating or requesting for nominations from the reserve panel:—

- UPSC, wherever possible, maintains a reserve panel of candidates found suitable on the basis of selections made by them for appointment on direct recruitment basis and the reserve panel is operated by the UPSC on a request received from the requisitioning Ministry/Department concerned.

- Where a selection has been made through UPSC, a request for nomination from the reserve list, if any, may be made to the UPSC in the event of occurrence of a vacancy caused by non-joining of the candidate within the stipulated time allowed for joining the post or where a candidate joins but he resigns or dies within a period of **one year** from the date of his joining, if a fresh panel is not available by then. Such a vacancy shall not be treated as a fresh vacancy.
- Where selections for posts under the Central Government are made through other recruiting agencies such as SSC or by the Ministries/Departments directly and the reserve panels are similarly prepared, the procedure for operation of reserve panels maintained by UPSC as described above will also be applicable for the reserve panels maintained by the other recruiting agencies/authorities.

2.1.3 Clarification in case more than one selection panel is received from UPSC/SSC through letter of the same date.

It has been encountered on a number of occasions that UPSC etc. in response to two separate requisitions from the Department on different point of time, sends two panels of direct recruits on the same date. Since the general principles on seniority envisages that the candidates appointed through an earlier selection shall stand senior to those appointed through a subsequent selection, it becomes difficult to fix the inter-se seniority of the candidates in such cases, drawn from two different panels of the same date. Accordingly, it has been decided that effort would be made by the UPSC and other selecting authorities to avoid recommending the panels on the same date and strive to send the panel for earlier requisition first. However, in case of such an eventuality (i.e. sending different panels on the same date) following procedures may be followed for fixation of the inter se seniority of the candidates from the two panels:—

- (i) Chronology of recommendation letter;
- (ii) Where the date of recommendation letter is same, chronology of interview board reports; and
- (iii) Where both (i) and (ii) are also same, then the chronology of requisition made by the respective Ministries/Departments.

It is also mentioned here that in case of recruitment through examination, the date of publication/announcement of the results shall remain the criteria.

2.2 SENIORITY OF PROMOTEEES

Para 2.2.1 Where promotions are made on the basis of recommendations of a Departmental Promotion Committee (DPC), either by 'selection' or 'non-selection' method as per due procedure, the seniority of an officer assessed as 'fit', in the promoted grade shall be same as in the feeder grade from which they are promoted. Where, however, a person is considered as unfit for promotion and is superseded by a junior, such persons shall not, if he/she is subsequently found suitable and promoted, take seniority in the higher grade over the junior persons who had superseded him/her. Persons appointed as a result of an earlier selection shall be senior to those appointed as a result of subsequent selection. The relative seniority of promotees which earlier used to be determined according to the date of confirmation in the promotion grade and not the original order of merit, (in case where confirmation was in an order different from the order of merit indicated at the time of their appointment), stands discontinued **w.e.f. 4.11.1992**.

Para 2.2.2 Where promotions to a grade are made from more than one feeder grade and quotas have been laid down for each feeder grade, the eligible persons shall be arranged in separate lists in the order of their relative seniority in their respective grades. The officers in each grade, assessed as fit by the DPC shall be interpolated in the ratio prescribed for each grade in the recruitment rules for the post.

When Eligibility List is to be resorted to?

Para 2.2.3 Where promotions to a grade/post are made from more than one grade and no quota has been fixed for various feeder grades owing to a small number of posts in the promotion grade, the aforesaid principle would not be viable. In such cases it would be required to prepare a combined eligibility list of candidates from various feeder grades, with due regard to the inter-se seniority of the candidates of various feeder grades. Separate instructions have been issued in this connection with regard to framing of recruitment rules in such a situation. Whereas specific criteria need to be issued/incorporated in the Recruitment Rules by the cadre controlling authorities for

preparation of combined eligibility list of the candidates from various feeder grades, broad parameters as under may be kept in view while preparing such list: —

- (a) Date of completion of the qualifying service prescribed in the relevant recruitment rules, in the feeder grade for promotion.
- (b) If the aforesaid date is same, then date of completion of the qualifying service in the feeder-to-feeder grade.
- (c) Inter-se seniority of the officers from each feeder grade will be maintained.

2.3 Seniority of SC/ST Government servants on their promotion by virtue of rule of reservation roster

SC/ST Government servants on their promotion by virtue of rule of reservation roster will be entitled to consequential seniority also. In other words, the candidates belonging to general/OBC category promoted through a later DPC will be placed junior to the SC/ST Government servants promoted through earlier DPC, even though by virtue of the rule of reservation.

2.3.1 Clarification on reservation roster vis-à-vis seniority

In case of promotion, vacancies meant and reserved for SC/ST are determined through the roster points in the reservation roster. It is clarified that the said reservation roster/points are meant only for identifying the vacancy that goes to a particular category of officer and in no way acts as a determinant for fixation of seniority of the officer in a panel recommended by the DPC. The DPC is to grade an officer as 'fit' or 'unfit' and the feeder grade seniority of the officers assessed as fit would be maintained in the promoted grade.

2.4 RELATIVE SENIORITY OF DIRECT RECRUITS AND PROMOTEEES

Para 2.4.1 A vacancy Register in the format prescribed (Annexure-1) is to be maintained for the purpose of determining the number of vacancies to be filled during a year under each of the methods of recruitment prescribed in the Recruitment Rules, giving a running account of the vacancies arising and being filled from year to year basis. Thus, where the Recruitment Rules prescribe appointment to a grade say 50% by Promotion and 50% by

Direct Recruitment then the rotation of quota between Promotion and Direct Recruitment would be in the ratio of **1:1**.

Para 2.4.2 A new vacancy register will have to be started in the following cases:—

- (i) From the date the recruitment rules are notified in the gazette.
- (ii) When there is an amendment to the Recruitment Rules which changes the percentage allotted for the various modes of recruitment.

Para 2.4.3 The relative seniority of direct recruits and of promotees shall be determined according to the rotation of vacancies between available direct recruits and promotees, which shall be based on the quota of vacancies reserved for direct recruitment and promotion respectively in the Recruitment Rules.

Para 2.4.4 If adequate number of direct recruits does not become available in any particular year, rotation of quotas for the purpose of determining seniority would take place only to the extent of the available direct recruits and the promotees. In other words, to the extent direct recruits are not available the promotees will be bunched together at the bottom of the seniority list below the last position upto which it is possible to determine seniority, on the basis of rotation of quotas with reference to the actual number of direct recruits who become available. The unfilled direct recruitment quota vacancies would, however, be carried forward and added to the corresponding direct recruitment vacancies of the next year (and to subsequent years where necessary) for taking action for direct recruitment for the total number of vacancies for direct recruits and promotees as determined according to the quota for that year.

2.4.5 — K. Meghachandra Singh Principles (w.e.f. 19.11.2019)

 **STATUTORY UPDATE (2021/2022):** The following instructions supersede all earlier instructions on inter-se seniority between direct recruits and promotees for all appointments made on or after **19.11.2019**, pursuant to the Hon'ble Supreme Court of India's Order dated **19.11.2019** in K. Meghachandra Singh & Ors. Vs Ningam Siro & Ors. (Ref: O.M. No. 20011/2/2019-Estt.(D) Dated **13.08.2021**, further incorporated in Master Circular dated **16.09.2022**).

With effect from **19.11.2019**, the determination of inter se seniority of direct recruits and promotees, as laid down by the Hon'ble Supreme Court of India, in its Order dated **19.11.2019** in K. Meghachandra Singh case will be governed by the following principles:—

- (i) The rotation of quota, based on the percentage of vacancies allocated to direct recruitment and promotion in the notified recruitment rules/service rules, shall continue to operate for determining vacancies to be filled by the respective quotas in a recruitment year. The term 'recruitment year' shall mean the year in which the vacancy arises. However, inter se seniority between direct recruits and promotees, who are appointed against the vacancies of respective quota, would be reckoned with reference to the year in which they are appointed i.e. year in which they are borne in the cadre or formal appointment order is issued.
- (ii) The terms 'recruitment' and 'appointment' have to be read harmoniously and the determination of seniority for recruitees would depend on their actual appointment and not the initiation of recruitment process itself. It thus follows that the seniority of direct recruits and promotees henceforth stands delinked from the vacancy/year of vacancy.
- (iii) The source of legitimacy of determination of seniority would be with reference to the date of joining of a person against a vacancy, irrespective of the fact that it may have arisen in the previous year(s) and not being a carried forward vacancy of any quota.
- (iv) If adequate number of direct recruits (or promotees) do not become available, "rotation of quotas" for the purpose of determining seniority, would stop after the available direct recruits and promotees are assigned their slots on joining in a particular year. The unfilled direct recruitment quota vacancies would, however, be carried forward and added to the corresponding direct recruitment vacancies of the next year (and to subsequent years where necessary) for taking action for direct recruitment for the total number of vacancies for direct recruits and promotees as determined according to the quota for that year.
- (v) The term 'available', both in the case of direct recruits as well as promotees, for the purpose of rotation and fixation of seniority, shall be the actual year of appointment after declaration of results/selection and completion of pre-appointment formalities as prescribed.

(vi) Thus, appointees who join in the concerned recruitment year and those who join in subsequent year(s), would figure in the seniority list of the respective years of their being appointed. To that extent it may not be necessary to go into the question of quota meant for direct recruits and promotees to find out as to the year in which the vacancy arose against which the recruitment is made.

2.4.6 — Detailed Procedure for Seniority Determination (Post-19.11.2019 Appointments)

For recruitments initiated on or after **19.11.2019** as well as for future recruitments, in addition to cases where the recruitment process has been initiated by the administrative Department/ Cadre Authority before **19.11.2019**, but where all appointments, subsequent to the initiation of recruitment process, could be made only on or after **19.11.2019** i.e. date of order of Apex Court, the inter se seniority of direct recruits and promotees shall be determined in the following manner:—

(a) The rotation of quota based on the percentage of vacancies allocated to direct recruitment and promotion in the notified recruitment rules/service rules, shall continue to operate for determination of vacancies to be filled by the respective quotas in a recruitment year.

(b) Determination of inter se seniority between direct recruits and promotees, who are appointed against the vacancies of respective quota, would, however, be reckoned with reference to the year in which they are appointed i.e. year in which they are borne in the cadre or formal appointment order is issued. In case, where the recruitment year is the same as the year of appointment, the appointees shall be given seniority of that year.

(c) Where in case of promotees or direct recruits, the year of appointment is the next year or any year subsequent to the recruitment year, the seniority of such promotees and direct recruits would be determined with reference to the year of their actual joining/appointment to the post, since they were not able to join in the said recruitment year in which the vacancy arose. Thus, they would get seniority of the year in which they actually join i.e. year in which formal appointment order is issued or they are borne in the service/cadre and that they shall not get seniority of any earlier year (viz. year of Vacancy/panel or year in which recruitment process is initiated).

(d) Rotation between promotees and direct recruits for the purpose of determination of inter-se seniority, would be undertaken only to the extent of available direct recruits and promotees in a particular year. The term 'available direct recruits or promotees' appearing in OMs dated 7.2.1986/3.7.1986, for the purpose of rotation of quota in fixation of inter-se seniority, shall mean the actual number of direct recruits and promotees appointed during the year after declaration of results/selection and completion of pre-appointment formalities as prescribed.

(e) As per (d) above, if adequate number of direct recruits (or promotees) do not become available in a particular year, the "rotation of quotas" for the purpose of determining inter-se seniority, would stop after the available direct recruits and promotees are assigned their slots on their appointment/joining in that year.

(f) If no direct recruit is available in a particular year, available promotees would be bunched together in accordance with their position in the panel approved for promotion. Similarly, if no promotee is available in that year, available direct recruits would be bunched together, as per their position obtained in the selection process.

(g) In case, where direct recruits or promotees, as the case may be, belonging to two or more selections/panel approved for promotion, join in the same year, then those who have been appointed/joined as a result of earlier selection/panel would be placed senior in the seniority list to those been appointed/joined as a result of a subsequent selection.

 **STATUTORY UPDATE (2025 — Dept. of Posts Application):** Vide letter No. X-07/17/2022-SPN-H dated 22.04.2025, the Department of Posts has issued clarification applying Para 7(iv) and 7(v) of DoPT OM dated 13.08.2021 to Inspector Posts (IP) cadre seniority. All India Seniority Lists of IP for the years 2017, 2018 issued earlier stand withdrawn ab initio. For IP direct recruits and promotees of the years 2017, 2018 & 2019 whose recruitment was initiated before 19.11.2019 but all appointments were made after 19.11.2019, their inter-se seniority is now governed by Para 7(v) — i.e., with reference to the year of their actual joining/appointment. (Ref: Dept. of Posts Letter No. X-07/17/2022-SPN-H, dated 22.04.2025).

3. SENIORITY OF ABSORBEES

Para 3.1 The method of recruitment 'Transfer' has been re-named as 'Absorption' and 'Transfer on Deputation' as 'Deputation'.

Para 3.2 The relative seniority of persons appointed by absorption to a Central service from the Subordinate Offices of the Central Government or other departments of the Central or a State Government shall be determined in accordance with the order of their selection for such absorption.

Para 3.3 Where such absorptions are effected against specific quotas prescribed in the Recruitment Rules, the relative seniority of such absorbees vis-à-vis direct recruits or promotees, subject to the provision of para 3.5 below, shall be determined by rotation of vacancies amongst the available direct recruits, promotees and absorbees which shall be based on the quotas reserved for direct recruitment, promotion and absorption respectively in the Recruitment Rules. Where the vacancies in any quota or quotas are carried forward, the principles stated in Para 2.4 will apply, mutatis mutandis in determining inter-se seniority of the appointees.

3.5 Seniority of persons absorbed after being on deputation

Para 3.5.1 In the case of a person who is initially taken on deputation and absorbed later (i.e. where the relevant recruitment rules provide for "Deputation/Absorption"), his seniority in the grade in which he/she is absorbed will normally be counted from the date of absorption. If he/she has, however, been holding already (on the date of absorption) the same or equivalent grade on regular basis in his/her parent department, such regular service in the grade shall also be taken into account in fixing his seniority, subject to the condition that he/she will be given seniority from—

- the date he/she has been holding the post on deputation,

(or)

- the date from which he/she has been appointed on a regular basis to the same or equivalent grade in his parent department,

whichever is earlier.

Para 3.5.2 The fixation of seniority of an absorbee in accordance with the above principle will not, however, affect any regular promotions to the next higher grade made prior to the date of such absorption. In other words, it will be operative only in filling up of vacancies in higher grade taking place after such absorption.

Para 3.5.3 It is also clarified that for the purpose of determining the equivalent grade in the parent department following criteria may be followed for determining analogous posts in so far as posts under the Central Government are concerned:—

(i) Though the scales of pay of the two posts which are being compared may not be identical, they should be such as to be an extension of or a segment of each other.

(ii) Both the posts should be falling in the same Group of posts. Classification of civil posts are as under:—

Sl. No.	Description of Posts	Classification of Posts
1	A Central Civil Post carrying the pay in the Pay Matrix at the Level from 10 to 18	Group A
2	A Central Civil Post carrying the pay in the Pay Matrix at the Level from 6 to 9	Group B
3	A Central Civil Post carrying the pay in the Pay Matrix at the Level from 1 to 5	Group C

[Para 1 of O.M. No. 14017/27/75-Estt.(D) Dated **March 7, 1984** and Para 1 of O.M. No. 11012/10/2016-Estt.A-III dated **08.12.2017** — Classification updated pursuant to 7th CPC]

(iii) The levels of the responsibility and the duties of the two posts should also be comparable.

(iv)(a) Where specific qualifications for transfer on deputation/transfer have not been prescribed, the qualifications and experience of the officers to be selected should be comparable to those prescribed for direct recruits to the post where direct recruitment has also been prescribed as one of the methods of appointment in the recruitment rules.

(iv)(b) Where promotion is the method of filling up such posts, only those persons from other Departments may be brought on transfer on deputation whose qualifications and experience are comparable to those prescribed for direct recruitment for the feeder grade/post from which the promotion has been made.

3.6 Seniority of persons who are transferred and absorbed directly without being on deputation

For persons who are transferred and absorbed directly without being on deputation i.e. where the recruitment rules provide for recruitment through absorption, the provision as contained in the aforesaid paras (para 3.5) would be applicable i.e. the date he has been holding the post on deputation or the date from which he has been appointed on the regular basis to the same or equivalent grade in his parent department, whichever is earlier.

3.7 Seniority of officers holding posts/grades in grades merged in pursuance of recommendations of Sixth Central Pay Commission

Para 3.7.1 Where all the posts in one or more pre-revised scales are merged with a higher pre-revised scale and given a common replacement scale/ grade pay/ pay scale, the suitability of the incumbents need not be assessed for granting them the higher replacement scale/ grade pay/pay scale. There is also no need for the incumbents to complete any minimum eligibility service in the earlier scale of pay.

Para 3.7.2 The recommendation of 6th CPC has been accepted on **29.08.2008** and the merger of pay scale(s) of the post has been made effective **w.e.f. 01.01.2006**. The seniority of officers holding post in grades which have been merged (except merged grades of MTS) in pursuance to recommendation of Sixth Central Pay Commission will be determined as follows:—

(a) The status of a government servant as on **29.08.2008** including those who have earned promotion between **01.01.2006** to **29.08.2008** will be protected as appointment/promotions are made as per the provisions of statutory recruitment rules applicable to the post/grade.

(b) The seniority of government servant which existed on **29.08.2008** (date of acceptance of recommendation of 6th CPC) will be maintained i.e. the holder of post having higher

pay scale or post which constituted promotion post for the posts in the feeder grade, will rank en-bloc senior to those holding post having lower pay scale or the posts in feeder grade.

(c) Where posts having different pay scales prior to 6th CPC recommendation and now after merger have come to lie in the same Pay Band with same Grade Pay, the inter-se seniority of all the employees will be fully maintained with employee in a higher pre-revised pay scale being placed higher vis-à-vis an employee in a lower pay scale. Within the same pre-revised pay scale, seniority which existed prior to revision would continue.

(d) Where recruitment for the posts in different pre-revised pay scale(s) was initiated separately for each post, prior to acceptance of recommendation of 6th CPC i.e. prior to **29.08.2008** but selected individual joined duty on or after **30.08.2008** in the revised pay scale(s) against the posts which have been granted same Grade Pay, such officers will be assigned seniority en-bloc below those officers who were in position as on **29.08.2008**.

(e) The availability of officers nominated on the basis of panel of promotion given by DPC or selection list given by selecting Authority will be decided as on **29.08.2008**. In case an officer from the panel given by DPC or selection list given by selecting Authority has joined on or prior to **29.08.2008**, then status of all the officers included in panel given by DPC or selection list will be protected and all officer will be considered available and their seniority determined by following the basic principle of seniority i.e. order of panel given by DPC or merit list given by selecting Authority. In case all the officers included in the panel given by DPC or selection list given by selecting Authority join after **29.08.2008**, then the seniority of such officers within a grade, will be determined by placing them below all available officers as on **29.08.2008** but maintaining their inter se seniority in order of panel of DPC or merit list given by selecting authority.

3.8 Seniority of MTS officials of merged grades in pursuance of recommendations of Sixth Central Pay Commission

The posts in the erstwhile Group 'D' for the purpose of determination of seniority, can be grouped into five different categories as under: —

S. No.	Pre-revised pay scale of the post	Category
1	Rs. 2750-70-3800-80-4590	I
2	Rs. 2650-65-3300-70-4000	II
3	Rs. 2610-60-2910-65-3300-70-4000	III
4	Rs. 2610-60-3150-65-3540	IV
5	Rs. 2550-55-2660-60-3200	V

The determination of seniority of merged grades will be regulated as per following guidelines:—

- (a) As on **29.08.2008**, holders of posts in Category-I will be en-bloc senior to the holders of posts in Category-II; similarly holders of the posts in Category-II will be senior to holders of the posts in Category-III and so on.
- (b) While merging the different grade(s), the inter se seniority in a post which existed as on **29.08.2008** is to be maintained.
- (c) Within same category, where different stand-alone posts have been merged, inter se seniority will be determined based on length of continuous officiation in the post.
- (d) Only the regular service in the grade is to be counted for determination of service and ad-hoc service, if any, is to be ignored.
- (e) Seniority is to be determined based on the substantive post held by the employee irrespective of the fact that such employee has been allowed financial upgradation to the next higher grade under ACP Scheme or any other scheme.

4. SENIORITY IN CASES OF DEPUTATION, STUDY LEAVE, EX-SERVICEMEN & MISCELLANEOUS

4.1 Seniority on deputation

Where a Government servant, who is senior to another Government servant in a cadre, goes on deputation to an equivalent or higher post and the junior Government servant is, during such period of deputation, promoted to a higher post, the Government servant on

deputation, on his return, will be placed immediately below such junior Government servant who was promoted to the higher post during the period of deputation of the senior Government servant.

4.2 Seniority on technical resignation

On technical resignation, seniority in the post held by the Government servant on substantive basis continues to be protected. However, in case of a Government servant deciding to rejoin his substantive post, the period spent in another department which he had joined after submitting his technical resignation will not count for minimum qualifying service for promotion in the parent department.

4.3 Seniority of officers proceeding on study leave

An officer proceeding on study leave should be treated on the same basis as an officer proceeding on deputation if the study leave was duly sanctioned by the competent authority and the competent authority certifies that he would have continued to officiate but for his proceeding on study leave. Such a certificate would not be necessary if he was holding the said departmental post substantively. These instructions would also apply in the cases of Government Servants who are granted special leave for training by the competent authority.

4.4 Seniority of Ex-Servicemen

Where the recruitment rules prescribe a separate quota for ex-servicemen, their inter-se seniority vis-à-vis direct recruits and/or promotees will be regulated in accordance with the principles laid down in Para 2.4 regarding relative seniority of direct recruits and promotees. Where no such separate quota has been prescribed, their seniority will be determined in the same manner as for other direct recruits.

4.5 Seniority of Government servants on re-employment after voluntary retirement

A Government servant who takes voluntary retirement and is subsequently re-employed in the same or any other post shall be treated as a fresh entrant so far as seniority in the post of his re-employment is concerned.

4.6 Seniority of persons appointed on compassionate grounds

(a) The inter-se seniority of persons appointed on compassionate grounds may be fixed with reference to their date of appointment. Their interpolation with the direct recruits/promotees may also be made with reference to their date of appointment without disturbing the inter-se seniority of direct recruits/promotees.

(b) Date of joining by a person appointed on compassionate grounds shall be treated as the date of his/her regular appointment. The person appointed on compassionate ground in a particular year would be placed at the bottom of all the candidates recruited/appointed through direct recruitment, promotion etc. in that year, irrespective of the date of joining of the candidate on compassionate grounds.

4.7 Determination of seniority of persons selected for appointment to different posts in the same grade requiring different qualifications

Where the selection for direct recruitment to the different posts carrying the same grade/pay in the pay Band and Grade Pay is conducted through the same selection process (e.g. Combined Graduate Level Examination of SSC, CGLE) and the inter-se seniority of the candidates selected for different posts of the same grade is required to be determined, it would be appropriate that a combined merit list of candidates selected for various posts of the same grade is drawn up and the inter-se seniority of all the candidates is determined in the order of merit obtained in that combined merit list.

TOPIC B: PROBATION AND CONFIRMATION IN CENTRAL SERVICES

PART I – PROBATION

Para 1 – Purpose of Probation

A person is appointed on probation in order to assess his suitability for absorption in the service to which he has been appointed. Probation should not, therefore, be treated as a mere formality. No formal declaration shall be necessary in respect of appointment on probation. The appointing authority may declare successful completion or extend the period of probation or terminate the services of a temporary employee on probation, on the basis of evaluation of performance.

Para 2 — When Probation is Prescribed

Probation is prescribed when there is direct recruitment, promotion from one Group to another or for officers re-employed before the age of superannuation. The probation shall stand successfully completed upon issue of orders in writing. It is, however, not desirable that a Government servant should be kept on probation for long periods.

Para 3 — Vigorous Use of Discharge Powers

Instead of treating probation as a formality, the existing powers to discharge probationers should be systematically and vigorously used so that the necessity of dispensing with the services of employees at later stages may arise only rarely.

Para 4 — Comprehensive Assessment

Concentration of attention on the probationer's ability to pass the probationary or the departmental examination, if applicable, should be an essential part of the qualification for confirmation but there should be a very careful assessment of the outlook, character and aptitude for the kind of work that has to be done in the service before a probationer is confirmed.

Para 5 — Probation Reports (Distinct from APAR)

A probationer should be given an opportunity to work under more than one officer during this period and reports of his work may be obtained from each one of those officers. The probation reports for the whole period may then be considered by a Board of senior officers for determining whether the probationer concerned is fit to be confirmed in service. For this purpose, separate forms of report should be used, which are distinct from the usual Annual Performance Appraisal Report (APAR) forms. The probation period reports, unlike APAR, are written to help the supervising officer to concentrate on the special needs of probation and to decide whether the work and conduct of the officer during the period of probation or the extended period of probation are satisfactory enough to warrant his further retention in service or post. The probation period reports thus do not serve the purpose for which the APARs are written and vice versa. Therefore, in the case of all probationers or officers on probation, separate probation period reports should be written in addition to the usual APARs for the period of probation.

Para 6 — Maximum Duration of Probation

Save for exceptional reasons, probation should not be extended for more than **a year** and in no circumstance an employee should be kept on probation for more than **double the normal period**.

Para 7 — Warning to Unsatisfactory Probationer

A probationer, who is not making satisfactory progress, should be informed of his shortcomings well before the expiry of the original probationary period so that he can make special efforts at self-improvement. This can be done by giving a written warning to the effect that his general performance has not been such as to justify his confirmation and that, unless he shows substantial improvement within a specified period, the question of discharging him would have to be considered. Even though this is not required by the rules, discharge from the service being a severe, final and irrevocable step, the probationer should be given an opportunity before taking the drastic step of discharge.

Para 8 — Training and Examinations during Probation

During the period of probation, or any extension thereof, candidates may be required by the Government to undergo such courses of training and instructions and to pass examinations, and tests (including examination in Hindi) as the Government may deem fit, as a condition for the satisfactory completion of probation.

Para 9 — MANDATORY INDUCTION TRAINING

In all cases of direct recruitment there should be a mandatory induction training of at least **two weeks** duration. Successful completion of the training may be made a pre-requisite for completion of probation. The syllabus for the training may be prescribed by the Cadre authorities in consultation with the Training Division of DOPT. The recruitment rules for all posts, wherever such a provision does not already exist, may be amended to provide for such mandatory training. Till such time as the Recruitment Rules are amended, a clause on the above lines may be included in the offer of appointment.

Para 10 – PERIOD OF PROBATION

The period of probation is prescribed for different posts/services in Central Government on the following lines:—

S. No.	Method of Appointment	Period of Probation
	PROMOTION	
1	Promotion from one grade to another but within the same group of posts, e.g. from Group 'C' to Group 'C'	No probation
2	Promotion from one Group to another, e.g. Group 'B' to Group 'A'	The period of probation prescribed for the direct recruitment to the higher post. If no period is prescribed then it should be 2 years
	DIRECT RECRUITMENT	
3(i)	For direct recruitment to posts — except clause (ii) below	2 years
3(ii)	For direct recruitment to posts carrying a Grade Pay of Rs. 7,600 or above, or to the posts to which the maximum age limit is 35 years or above and where no training is involved. (<i>Note: Training includes 'on the job' or 'Institution training'</i>)	1 year
4	Officers re-employed before the age of superannuation	2 years
5	Appointment on contract basis, tenure basis, re-employment after superannuation and absorption	No probation

(A) DIRECT RECRUITMENT TO ANOTHER POST IN SAME OR DIFFERENT DEPARTMENT

If a Government servant is appointed to another post by direct recruitment either in the same department or a different department, it may be necessary to consider him for confirmation in the new post in which he has been appointed by direct recruitment irrespective of the fact that the officer was holding the earlier post on a substantive basis. Further confirmation in the new entry grade becomes necessary because the new post may not be in the same line or discipline as the old post in which he has been confirmed and the fact that he was considered suitable for continuance in the old post (which was the basis for his confirmation in that post) would not automatically make him suitable for continuance or confirmation in the new post, the job requirements of which may be quite different from those of the old post.

(B) PROMOTION

(i) Persons who are inducted into a new service through promotion shall also be placed on probation. There shall be no probation on promotion from one grade to another but within the same group of posts, except when the promotion involves a change in the Group of posts in the same service, e.g., promotion from Group 'B' to Group 'A' in which case the probation would be for the prescribed period.

(ii) Consequent upon the decision of delinking confirmation from the availability of permanent posts it was also decided that if the recruitment rules do not prescribe any probation, an officer appointed/promoted on regular basis (after following the prescribed DPC procedure, etc.) will have all the benefits that a person confirmed in that grade would have.

LEAVE TO PROBATIONER / PERSON ON PROBATION

Para 11

A probationer shall be entitled to leave under the provisions of Rule 33 of the CCS (Leave) Rules, 1972. If, for any reason, it is proposed to terminate the services of a probationer, any leave which may be granted to him shall not extend:—

- I. beyond the date on which the probationary period as already sanctioned or extended, expires, or
- II. beyond any earlier date on which his services are terminated by the orders of an authority competent to appoint him.

Para 12

A person appointed to a post on probation shall be entitled to leave under these rules as a temporary or a permanent Government servant according as his appointment is against a temporary or a permanent post;

Provided that where such person already holds a lien on a permanent post before such appointment, he shall be entitled to leave under these rules as a permanent Government servant.

[Rule 33, CCS (Leave) Rules, 1972]

Para 13 – Child Care Leave to Probationers

As far as the matter of Child Care Leave to probationers is concerned, CCL should not ordinarily be granted during the probation period except in case of certain extreme situations where the leave sanctioning authority is fully satisfied regarding the need of Child Care Leave to the probationer. It may also be ensured that the period for which this leave is sanctioned during probation is minimal. Further the other provisions contained in Rule 43-C of the CCS (Leave) Rules, 1972 will also apply.

[Rule 43-C, CCS (Leave) Rules, 1972]

Para 14 – Joining Time during Probation

Joining Time is granted to Government servants on transfer in public interest. The period of joining time availed by a probationer on return from leave should be counted towards the prescribed period of probation if but for the leave, he would have continued to officiate in the post to which he was appointed.

EXTENSION OF PROBATION PERIOD

Para 15 — Extension for non-completion of training/examination

If during the period of probation, a probationer has not undergone the requisite training course or passed the requisite departmental examinations prescribed (proficiency in Hindi, etc.), if any, the period of probation may be extended by such period or periods as may be necessary, subject to the condition that the total period of probation does not exceed **double the prescribed period of probation**.

Para 16 — General Extension

If the Appointing Authority thinks it fit, they may extend the period of probation of a Government servant by a specified period but the total period of probation should not exceed **double the normal period**. In such cases, periodic reviews should be done and extension should not be done for a long period at a time.

Para 17 — Confirmation upon Satisfactory Completion

Where a probationer who has completed the period of probation to the satisfaction of the Central Government is required to be confirmed, he shall be confirmed in the Service/Post at the end of his period of probation, having completed the probation satisfactorily.

Para 18 — Extension on account of Leave (75% Rule)

Some employees are not able to complete the probation on account of availing leave for long duration during probation period. In such cases if an employee does not complete **75%** of the total duration prescribed for probation on account of availing any kind of leave as permissible to a probationer under the Rules, his/her probation period may be extended by the length of the leave availed, but not exceeding **double the prescribed period of probation**.

 **STATUTORY UPDATE (2017):** The provision regarding extension of probation period on account of availing leave during probation was first introduced vide O.M. No. 28020/1/2017-Estt(C) dated **09.10.2017** and subsequently incorporated in the Master Circular dated **11.03.2019** and the Consolidated O.M. dated **24.11.2022**. The **75%** threshold is the operative test.

TERMINATION OF PROBATION

Para 19 — Timely Decision

The decision whether an employee should be confirmed or his probation be extended should be taken soon after the expiry of the initial probationary period, that is within **six to eight weeks**, and communicated in writing to the employee together with reasons, in case of extension. A probationer who is not making satisfactory progress or who shows himself to be inadequate for the service in any way should be informed of his shortcomings well before the expiry of the original probationary period so that he can make special efforts at self-improvement.

Para 20 — Steps on Expiry of Probation

On the expiry of the period of probation, steps should be taken to obtain the assessment reports on the probationer so as to:—

- (i) Confirm the probationer / issue orders regarding satisfactory termination of probation, as the case may be, if the probation has been completed to the satisfaction of the competent authority; or
- (ii) Extend the period of probation or discharge the probationer or terminate the services of the probationer as the case may be, in accordance with the relevant rules and orders, if the probationer has not completed the period of probation satisfactorily.

Para 21 — Timely Action for Confirmation

In order to ensure that delays do not occur in confirmation, timely action must be initiated in advance so that the time limit is adhered to.

Para 22 — Reversion or Discharge

If it appears to the Appointing Authority, at any time, during or at the end of the period of probation that a Government servant has not made sufficient use of his opportunities or is not making satisfactory progress, the Appointing Authority may revert him to the post held substantively by him immediately preceding his appointment, provided he holds a lien thereon or in other cases may discharge or terminate him from service.

Para 23 – No Compensation on Reversion/Discharge

A Probationer reverted or discharged from service during or at the end of the period of probation shall not be entitled to any compensation.

PART II – CONFIRMATION

Para 24 – Delinking Confirmation from Permanent Vacancy

Confirmation is de-linked from the availability of permanent vacancy in the grade. In other words, an officer who has successfully completed the probation, as prescribed under relevant rules, may be considered for confirmation. Consequent upon the above decision of delinking confirmation from the availability of permanent posts, it emerges that:—

- **Confirmation will be done only once** in the service of an officer which will be in the entry grade post/service/cadre;
- **Provided** further confirmation shall be necessary when there is fresh entry subsequently in any other post/service/cadre by way of direct recruitment or otherwise.

A specific order of confirmation should be issued when the case is cleared from all angles.

Para 25 – Discharge or Reversion of Unfit Probationer

If, during the period of probation or any extension thereof, as the case may be, the Government is of the opinion that an officer is not fit for permanent appointment, the Government may either discharge or revert the officer to the post held by him prior to his appointment in the service, as the case may be.

Para 26 – Confirmation on Promotion

Where probation on promotion is prescribed, the appointing authority will on completion of the prescribed period of probation assess the work and conduct of the officer himself and in case the conclusion is that the officer is fit to hold the higher grade, he will pass an order declaring that the person concerned has successfully completed the probation. If the appointing authority considers that the work of the officer has not been satisfactory or needs to be watched for some more time he may revert him to the

post/service/cadre from which he was promoted, or extend the period of probation, as the case may be. There should be no hesitation to revert a person to the post or grade from which he was promoted if the work of the officer during probation has not been satisfactory.

Para 27 – Effective Date of Confirmation & Deemed Completion

The date from which confirmation should be given effect is the date following the date of satisfactory completion of the prescribed period of probation or the extended period of probation, as the case may be. The decision to confirm the probationer or to extend the period of probation as the case may be should be communicated to the probationer normally within **6 to 8 weeks**.

Probation should not be extended for more than a year and, in no circumstance, an employee should be kept on probation for more than **double the normal prescribed period of probation**.

DEEMED COMPLETION: The officer will be deemed to have successfully completed the probation period if no order confirming, discharging or reverting the officer is issued within **eight weeks** after expiry of **double the normal period** of prescribed probation.

Para 28 – Confirmation of Government Servant appointed by Transfer

A Government servant appointed by transfer would duly have been confirmed in the earlier post. In such a case further confirmation in the new post would not be necessary and he could be treated as permanent in the new post. However, where a Government servant who has not already been confirmed in the old post is appointed by transfer, it would be necessary to confirm him in the new post. In such cases, he may be considered for confirmation after watching him for **two years**. During that period of **two years**, the officer would earn two reports in the new grade and the DPC may consider his case for confirmation on the basis of these APARs.

SUMMARY TABLE – KEY DATA POINTS FOR QUICK REVISION

Parameter	Provision
Purpose of probation	To assess suitability for absorption in service
When prescribed	Direct recruitment; Promotion from one Group to another; Re-employment before superannuation
Standard probation period (DR)	2 years
Probation for posts with Grade Pay Rs. 7,600+ or age limit 35 years+ (no training)	1 year
Probation on promotion (Group to Group)	Period prescribed for DR to higher post; if none, 2 years
Promotion within same Group	No probation
Contract/Tenure/Re-employment after superannuation/Absorption	No probation
Maximum extension permitted	Double the normal period
75% Rule – Leave during probation	If employee does not complete 75% of probation duration due to leave → extend by length of leave availed (not exceeding double)
Time for confirmation decision	Within 6 to 8 weeks of expiry of probation
Deemed completion	If no order passed within 8 weeks after expiry of double the normal period
Mandatory induction training (DR)	At least 2 weeks
Confirmation – Delinking from vacancy	Yes – delinked from availability of permanent vacancy

Confirmation — Frequency	Once in entry grade; fresh confirmation needed only on fresh DR entry to another service/cadre
Separate probation reports	Mandatory — distinct from APAR forms
CCL during probation	Not ordinarily; only in extreme situations; to be kept minimal

TOPIC C: GUIDELINES ON DEPARTMENTAL PROMOTION COMMITTEES (DPC)

1. FUNCTIONS AND COMPOSITION OF DPC

Para 1.1 — Functions of DPC/DCC

A post is filled on promotion basis where the Recruitment Rules so provide as a method of recruitment. In making promotions, it should be ensured that suitability of the candidates for promotion is considered in an objective and impartial manner. For this purpose, Departmental Promotion Committee [DPC] (for considering Promotion) should be formed in each Ministry/Department/Organisation. In addition, for considering cases of confirmation, Departmental Confirmation Committee [DCC] needs to be constituted.

The DPCs/DCCs so constituted shall judge the suitability of officers for:—

- (a) 'Promotion' to 'Selection' as well as 'Non-Selection' posts.
- (b) Appointment of existing incumbent(s) to post(s) which has(have) been upgraded, in the event of upgradation of post(s) held by the officer(s), in accordance with provisions of DoPT O.M. No. 22011/10/84-Estt(D) dated **04.02.1992** and O.M. No. AB-14017/66/2008-Estt.(RR) dated **09.03.2009**.
- (c) Confirmation of direct recruits in their respective entry grades/posts, confirmation of those promoted in case of change of Group on Promotion or confirmation for officers re-employed before the age of superannuation (by the Departmental Confirmation Committee).

(d) Assessment of work and conduct of the probationers for the purpose of determining their suitability for retention in service or their discharge from it or extending their probation.

Para 1.2 — Composition of DPC for Group 'A' and Group 'B' posts

Members included in DPCs for Group 'A' and Group 'B' posts should be officers who are at least **one level above** the posts in which promotion/confirmation is to be made. A nominee of Department of Personnel & Training (DoPT) shall also be associated with the DPCs in respect of posts covered by the Appointments Committee of the Cabinet (ACC) delegation.

Para 1.3 — Association of UPSC with DPCs/DCCs

1.3.1 Cases of promotion:

In cases of promotion by Selection, it shall not be necessary to associate the Union Public Service Commission while making a promotion to any Group 'A' Service or post the maximum of the scale of pay of which is less than **Rs. 16,500** (less than **Pay Level 12**), of an officer holding any Group 'A' service or post. Consultation with UPSC shall continue to be necessary while considering promotion from **Group 'B' to any level in Group 'A'**.

Whenever the UPSC is associated with a DPC, the Chairman or a Member of the Commission will preside at the meeting of the DPC.

1.3.2 Cases of confirmation:

It shall not be necessary to consult the UPSC while making substantive appointment or confirmation to any Group 'A' or Group 'B' Service or post, of any person recruited directly through the UPSC to such Group 'A' or Group 'B' Service or post.

Para 1.3.3 — Composition of DPC for Group 'C' posts

In respect of a DPC for Group C posts, the Chairman of the DPC should be an officer of a sufficiently high level and one of the members of the DPC should be an officer from a Department not connected with the one in which promotions are considered. The other member(s) should be an officer of the Department familiar with the work of the persons whose suitability is to be assessed. In the case of a DPC constituted for promotions to a

technical post, it may also be ensured that the officer nominated by another Department has also the requisite technical competence to advise on the suitability of the candidates under consideration.

Para 1.3.4 – Co-option of SC/ST officers as Members of DPC

(a) Endeavour should also be made to nominate an SC/ST officer on the DPC constituted for various posts/services particularly where a DPC has to make bulk selection for a large number of vacancies, say **30 or more** at a time.

(b) In Group A and Group B Services/posts if none of the officers included in the DPC as per the composition given in the recruitment rules is a SC or ST officer, it would be in order to co-opt a member belonging to the SC or ST if available within the Ministry/Department. If no such officer is available within the Ministry/Department, he may be taken from another Ministry/Department.

2. FREQUENCY OF DPC MEETINGS

Para 2.1 – Model Calendar

The DPCs should be convened at regular annual intervals to draw panels, which could be utilized for making promotions against the vacancies occurring during the course of the vacancy year. From the year **2018** onwards, Vacancy Year stands shifted to **Calendar Year**. Accordingly from **2019** onwards, the crucial date for determining eligibility shall be the **1st of January** of the Vacancy Year.

MODEL CALENDAR FOR DPCs – ACC CASES:

Sl. No.	Event	Timeline
1	Crucial date for determining eligibility	1st January of the Vacancy Year
2	Compilation of APARs/Vigilance Clearance/Seniority List/Penalty and Vacancy position etc., and forwarding DPC proposal to UPSC	January to 15th April of the year preceding the vacancy year

3	Last date for sending complete proposal to UPSC	15th April of the year preceding the vacancy year
4	DPC to be held	15th April – August of the year preceding the vacancy year
5	Post-DPC follow-up action	September of the year preceding the vacancy year
6	Approval of the ACC	October – December of the year preceding the vacancy year
7	Approved select panel ready	31st December of the year preceding the vacancy year

MODEL CALENDAR FOR DPCs – NON-ACC CASES:

Sl. No.	Event	Timeline
1	Crucial date for determining eligibility	1st January of the Vacancy Year
2	Compilation of APARs/Vigilance Clearance/Seniority List/Penalty and Vacancy position	January – April of the year preceding the vacancy year
3	Last date for sending complete proposal to DPC	30th April of the year preceding the vacancy year
4	DPC to be held	May – October of the year preceding the vacancy year
5	Post-DPC follow-up action including approval of Competent Authority	November – December of the year preceding the vacancy year

6	Approved select panel ready	31st December of the year preceding the vacancy year
---	-----------------------------	---

Para 2.2 — Recruitment Rules at the time of occurrence of vacancy

A vacancy shall be filled in accordance with the recruitment rules in force as on the date of vacancy, unless rules made subsequently have been given retrospective effect. Holding of DPC meetings need not be delayed or postponed merely on the ground that recruitment rules for a post are being reviewed/amended.

Para 2.3 — Non-holding of DPC — Certificate Required

The requirement of convening annual meetings of the DPC/DCC should be dispensed with only after a certificate has been issued by the appointing authority that there are no vacancies to be filled by promotion or no officers are due for confirmation during the year in question.

3. PREPARATORY ACTION FOR HOLDING DPCs

Para 3.1 — Determination of Regular Vacancies

The vacancies to be taken into account should be clear vacancies arising in a post/grade/service in the relevant vacancy year due to retirement, regular long term promotion and deputation. As regards vacancies arising out of deputation, only those cases of deputation for periods exceeding **one year** should be taken into account. Purely short term vacancies created as a result of officers proceeding on leave, or on deputation for a shorter period, training etc. should not be taken into account.

Chain Vacancies: DPC for a grade may take into account all clear expected vacancies by retirement etc. in the concerned grade as well as chain vacancies on account of retirement etc. in the higher grades which can be clearly anticipated in the same vacancy year.

Para 3.2 — Papers to be put up for consideration by DPC

3.2.1 APARs: No proposal for holding DPC meeting should be sent until and unless all the APARs complete and upto-date are available. In certain cases involving collection of a large number of APARs, the proposal can be sent only if at least **90%** of the APARs reckonable for the vacancy year concerned are available.

If the APAR for a particular year/period is not available, a **No Report Certificate** should be recorded and placed in the respective APAR dossier.

3.2.2 Statement of Penalties: A statement indicating the penalties imposed on the officers included in the zone of consideration during a period of **ten years** preceding the year in which DPC is held, including till the date of DPC, should be attached.

Para 3.2.3 — Special Cases:

(i) Officers on Deputation: Names of officers on deputation to an ex-cadre post should also be included in the list submitted to the DPC if they come within the field of choice and fulfill eligibility conditions.

(ii) Counting of Deputation/Foreign Service: Period of service rendered on deputation/foreign service should be treated as comparable service in the parent Department for purposes of promotion as well as confirmation — subject to the condition that the deputation/foreign service is with the approval of the competent authority.

(iii) Officers on Study Leave/Special Leave: An officer proceeding on study leave should be treated on the same basis as an officer proceeding on deputation.

(iv) Officers already recommended for Direct Recruitment: An officer does not lose his right of consideration for promotion merely because he has been recommended for appointment against the direct recruitment quota. Such officers, if within the field of eligibility, should be included.

4. PROCEDURE TO BE OBSERVED BY DPC

Para 4.1 — Certificate by Chairperson/Members

Each Chairperson/Member of the DPC must furnish information that none of his/her close relative is being considered by the DPC and that he/she is otherwise also not interested in any particular candidate.

Para 4.2 — Interviews in Promotions

No interviews should be held unless specifically provided for in the recruitment rules. Interviews in junior level posts upto **Group 'B' (Non-Gazetted)** have been **discontinued** irrespective of mode of appointment.

Para 4.3 – ZONE OF CONSIDERATION FOR PROMOTION BY SELECTION

No. of Vacancies	No. of Officers to be Considered (Normal Zone)	Extended Zone for SC/ST
1	5	5
2	8	10
3	10	15
4	12	20
5 to 10	Twice the number of vacancies + 4	5 times the number of vacancies
Exceeding 10	One & half times the number of vacancies (rounded off to next higher integer) + 3 (<i>but not less than the zone for 10 vacancies</i>)	5 times the number of vacancies

Para 4.4 – Guidelines for Conducting DPC Proceedings

4.4.3 – Merit Principle: Advancement in an officer's career would not be regarded as a matter of course, but should be earned by dint of hard work, and good conduct and result oriented performance as reflected in the APARs and based on strict and rigorous selection process.

4.4.4 – Consideration of APARs:

- (a) The DPC should consider APARs for equal number of years in respect of all officers.
- (b) The DPC should assess suitability on the basis of APARs for **five years** preceding **T-2nd year** as reckoning APARs. If more than one APAR have been written for a particular year, all the APARs for the relevant years shall be considered together as the APAR for one year.
- (c) Where one or more APARs have not been written, the DPC should consider APARs of the years preceding the period in question.
- (d) Where an officer is officiating in the next higher grade and has earned APARs in that grade, his APARs in that grade may be considered, but **no extra weightage** shall be given merely on the ground that he has been officiating in the higher grade.

(e) The DPC should not be guided merely by the overall grading recorded in the APARs but should make its own assessment on the basis of the entries in the APARs.

(f) "Average" performance should be regarded as routine and undistinguished. It is only performance that is above average and performance that is really noteworthy, which should entitle an officer to recognition.

(g) If the Reviewing authority or the Accepting authority has over-ruled the Reporting Officer, the remarks of the latter authority should be taken as the final remarks for the purposes of assessment.

4.4.6 – PREPARATION OF PANEL AND BENCHMARK PRESCRIPTION

Mode of Promotion – Selection Only (No Supersession)

The distinction in the nomenclature ('selection by merit' and 'selection-cum-seniority') has been dispensed with and the mode of promotion in all cases shall be '**selection**' only. The element of selectivity (higher or lower) shall be determined with reference to the relevant benchmark prescribed for promotion.

BENCHMARK TABLE:

Post/Level	Benchmark	Method
Pay Level 12 and above	'Very Good'	Selection — Higher selectivity
Pay Level 14 and above	'Very Good' — prescribed benchmark must be met invariably in all 5 APARs under consideration	Selection — Strict application
Below Pay Level 12 (including promotions from lower Groups to Group 'A')	'Good'	Selection
Non-Selection posts	'Fit' / 'Not Yet Fit'	Non-Selection

Key Principles for Panel Preparation:

(a) There shall be **no supersession** in promotion among those found 'fit' by the DPC. Officers graded as 'fit' shall be included in the select panel in order of their **inter-se seniority in the feeder grade**.

(b) Appointments from the panel shall be made in the order of names appearing in the panel.

(c) Where sufficient number of officers with the required benchmark are not available within the zone of consideration, officers with the required benchmark will be placed on the panel and for the unfilled vacancies, the appointing authority should hold a **fresh DPC** by considering the required number of officers beyond the original zone of consideration.

Non-Selection Method:

Where the promotions are to be made on 'non-selection' basis, the DPC need not make a comparative assessment of the records of officers and it should categorize the officers as '**fit**' or '**not yet fit**' for promotion on the basis of assessment of their record of service. The officers categorized as 'fit' should be included in the panel in the order of their seniority.

Confirmation by DCC:

In the case of confirmation, the DCC should not determine the relative merit of officers but should assess the officers as '**Fit**' or '**Not yet fit**' for confirmation in their turn on the basis of their performance in the post as assessed with reference to their record of service (APARs for the period of probation/extended period of probation).

5. PENALTY CASES AND DPC**Para 5.1 — Effect of Penalty on Promotion**

(a) In assessing the suitability of the officer on whom a penalty has been imposed, the DPC will take into account the circumstances leading to the imposition of the penalty and decide whether, in the light of the general service record of the officer and the fact of the imposition of the penalty, the officer should be considered for promotion.

(b) The DPC, after due consideration, has the authority to assess the officer as '**unfit**' for promotion.

(c) However, where the DPC considers that despite the penalty the officer is suitable for promotion, the officer will be actually promoted **only after the currency of the penalty is over**.

[Para 7(g) of O.M. No. 22011/4/2007-Estt.(D) dated **28.04.2014**]

(d) Any proposal for promotion has to be assessed by the DPC, on case to case basis, and the practice of downgradation of APARs by one level in all cases for one time, where a penalty has been imposed in a year included in the assessment matrix or till the date of DPC should be **discontinued immediately**, being legally non-sustainable.

(e) While there is no illegality in denying promotion during the currency of the penalty, denying promotion in such cases after the period of penalty is over would be in **violation of the provisions of Article 20** of the Constitution of India.

(f) Currency period of Censure for the purpose of promotion: For the minor penalty of Censure, no currency has been prescribed. It would mean that if the DPC considers the officer fit for promotion notwithstanding the award of censure, he/she can be promoted without referring to the currency of penalty.

6. SEALED COVER PROCEDURE

Para 6.1 — When Sealed Cover applies

If any of the following conditions exist in respect of an officer who falls within the zone of consideration, his case shall be placed in a sealed cover:—

(i) Where departmental proceedings have been instituted for the imposition of any of the major or minor penalties;

(ii) Where prosecution for a criminal charge is pending in a Court of Law; or

(iii) Where the officer is under suspension.

Para 6.2 — Assessment by DPC

The DPC shall assess the suitability of the officer for promotion along with other officers and record its findings in a sealed cover. The sealed cover shall be kept in the custody of the authority specified by the appointing authority.

Para 6.3 — Opening of Sealed Cover

The sealed cover shall be opened after the conclusion of the disciplinary/court proceedings:—

- If the officer is **completely exonerated** → he/she shall be promoted to the post with reference to the date of promotion of his/her immediate junior, on a regular basis.
- If the officer is **not exonerated** → the findings in the sealed cover shall not be acted upon.

Para 6.4 — Validity Period

The sealed cover procedure should be valid for a period corresponding to the **validity of the panel**. If within the validity period, the proceedings are concluded and the officer is exonerated, he shall regain his position in the panel.

7. VALIDITY OF PANELS

Para 7.1 — Duration

The 'select list' should be periodically reviewed. The names of those officers who have already been promoted (otherwise than on a local or purely temporary basis) and continue to officiate should be removed from the list and rest of the names, if they are still within the consideration zone, should be evaluated by the next DPC.

Para 7.2 — Validity of panel regarding officers on long leave

Where an officer who has been included in the panel by the DPC is on long leave and does not join back within the currency of the panel, his panel will remain valid. He will be promoted on his return, provided his seniority in the parent cadre entitles him to be promoted against the vacancy existing at the time of his return.

8. YEAR-WISE PANELS WHERE DPC HAS NOT MET FOR YEARS

🔔 **STATUTORY UPDATE (July 2024):** The DoPT vide O.M. No. 22011/1/2023-PP(D-Promotion) dated **18.07.2024** has **withdrawn** its earlier O.M. dated **12.02.2024** (which revised para 3 of OM dated 12.10.1998 regarding treatment of retired employees by DPC) as **non-est**. Consequently, **para '3' of OM No. 22011/4/98-Estt.(D) dated 12.10.1998 stands restored** with effect from **1st January, 2024**. All DPC meetings conducted as per the withdrawn OM dated 12.02.2024 are to be reviewed accordingly.

Where for reasons beyond control, the DPC could not be held in a year(s), the first DPC that meets thereafter should:—

- (i) Determine the actual number of regular vacancies that arose in each of the previous year(s) separately.
- (ii) Consider in respect of each year those officers only who would be within the field of choice with reference to the vacancies of each year starting with the earliest year onwards.
- (iii) Prepare a 'Select List' by placing the select list of the earlier year above the one for the next year and so on.
- (iv) While promotions will be made in the order of the consolidated select list, such promotions will have **only prospective effect** even in cases where the vacancies relate to earlier year(s).
- (v) For the purpose of evaluating merit, the scrutiny of the record of service should be limited to the records that would have been available had the DPC met at the appropriate time.

9. REFUSAL OF PROMOTION

When a Government employee does not want to accept a promotion which is offered to him, he may make a written request and the request will be considered by the appointing authority. If the reasons adduced are acceptable, the next person in the select list may be promoted. However, **no fresh offer of appointment on promotion shall be made** in such cases for a period of **one year** from the date of refusal of first promotion or till a next vacancy arises, **whichever is later**. On the eventual promotion to the higher grade, such

Government servant will **lose seniority** vis-à-vis his juniors promoted to the higher grade earlier.

10. REVIEW DPC

A Review DPC needs to be held in cases where vacancies were not reported to the DPC due to error or omission though the vacancies were there at the time of holding of DPC meeting. This results in injustice by artificially restricting the zone of consideration. In all such cases, a review DPC should be held keeping in mind the total vacancies of the year.

Where a Government servant found fit by Review DPC has already retired:—

- If the officer retires after the Review DPC recommends him for promotion → he shall be promoted in the post before his superannuation.
- Promotions given by a review DPC will be effective from the date the original DPC recommendations were given effect to.

11. SUPPLEMENTARY DPC

Where vacancies arise subsequently during the vacancy year due to death, resignation, creation of new posts, a supplementary DPC needs to be convened. Key principles:—

(a) The zone of consideration for supplementary DPC shall be fixed keeping in view the **total number of vacancies** arising in a particular vacancy year (Original DPC vacancies + additional vacancies).

(b) The eligibility list for supplementary DPC shall be prepared by **removing the names** of all officers already assessed by the earlier DPC as fit, unfit or placed in sealed cover.

(c) Officers already empanelled or placed in extended panel but could not be promoted due to non-availability of vacancies need not be re-assessed. They may be appointed against the additional vacancies of the same vacancy year.

SUMMARY TABLE — KEY DATA POINTS FOR QUICK REVISION

Parameter	Provision

Mode of promotion	'Selection' only — distinction between 'selection by merit' and 'selection-cum-seniority' dispensed with
Benchmark: Pay Level 12 and above	'Very Good'
Benchmark: Pay Level 14 and above	'Very Good' — invariably in all 5 APARs
Benchmark: Below Pay Level 12	'Good'
Non-Selection posts	'Fit' / 'Not Yet Fit'
Confirmation (DCC)	'Fit' / 'Not Yet Fit'
Supersession	No supersession among those found 'fit'
Zone of Consideration — 1 vacancy	5 officers
Zone of Consideration — 2 vacancies	8 officers
Zone of Consideration — 5 to 10 vacancies	Twice the number + 4
Zone of Consideration — above 10 vacancies	1.5 times (rounded up) + 3
Extended Zone for SC/ST	5 times the number of vacancies
Vacancy Year	Calendar Year (w.e.f. 2018)
Crucial date for eligibility	1st January of Vacancy Year
APARs considered	5 years preceding T-2nd year
Minimum APARs available	90% reckonable APARs
Statement of penalties	For 10 years preceding DPC

Interviews for promotion	Discontinued upto Group 'B' (Non-Gazetted)
UPSC association	Required for promotion from Group 'B' to Group 'A' ; Not required for intra-Group 'A' below Pay Level 12
SC/ST on DPC	Co-opt when 30 or more vacancies
Penalty — promotion after currency	Allowed only after currency of penalty is over
Refusal of promotion	No fresh offer for 1 year or till next vacancy; loses seniority over juniors promoted earlier
Panel validity — long leave	Panel remains valid ; promoted on return
Retired persons — DPC	OM dt. 12.02.2024 withdrawn vide OM dt. 18.07.2024 ; original para 3 of OM dt. 12.10.1998 restored

TOPIC D: DEPUTATION / FOREIGN SERVICE – CONSOLIDATED GUIDELINES

SECTION I – DEPUTATION / FOREIGN SERVICE

1. DEFINITION AND APPLICABILITY

Para 1.1 Foreign service has been defined as service in which a Government servant receives his pay with the sanction of Government from any source other than the Consolidated Fund of India. [FR 9(7)]

Para 1.2 The terms deputation/foreign service will cover only those appointments that are made by transfer on a temporary basis provided the transfer is outside the normal field of deployment and is in public interest.

Para 1.3 – Applicability: These orders apply to all Central Government employees who are regularly appointed on deputation/foreign service in accordance with the Recruitment Rules of the ex-cadre posts, under the same or some other Departments of Central Government or under State Governments/UT Administrations/Local Bodies or under Central/State PSUs/Autonomous Bodies etc.

Para 1.4 — Exclusions: The following are NOT covered:—

- (a) Members of the All India Services (separate orders exist)
- (b) Central Armed Police Forces personnel
- (c) Officers deputed to International Organizations
- (d) Appointments of the nature of deemed deputation or transfers to ex-cadre posts with no DDA
- (e) Arrangements on re-organisation of offices

2. CATEGORIES OF DEPUTATION

The instructions cover appointments under the following categories:—

S. No.	Category	Selection Method
1	Posts under Central Staffing Scheme	Civil Services Board
2	Posts of Chief Vigilance Officers (CVOs)	From DoPT panel with CVC concurrence
3	Posts in Statutory Bodies and Autonomous Institutions	Search-cum-Selection Committee
4	Posts in Central PSUs/PSUs of State Govts.	Through PESB/Search Committee
5	Posts in Constitutional Bodies	Civil Services Board / By name request
6	Non-CSS Posts	NOC/Cadre/Vigilance Clearance from CCA

3. EXERCISE OF OPTION

Para 3.1 An employee appointed on deputation/foreign service may elect to draw either:—

(a) the pay in the Level (in the Pay Matrix)/Scale of pay of the deputation/foreign service post; OR

(b) his/her basic pay in the parent cadre **plus** Deputation (Duty) Allowance thereon **plus** Personal Pay, if any.

Para 3.2 The borrowing authority shall obtain the option of the employee within **one month** from the date of joining the ex-cadre post unless the employee opts within the said period, the option of the employee shall be deemed to have been exercised for pay in the scale of the ex-cadre post.

Para 3.3 The option once exercised shall be **final**.

Para 3.4 However, the employee may revise the option under the following circumstances:—

- (a) When there is a change in the pay/Pay Matrix in the parent cadre or the ex-cadre post;
- (b) On grant of next increment in the parent cadre post.

Note: Revision in the rates of DA, HRA or any other allowance either in the parent or borrowing organisation shall **not** be an occasion for revision of the earlier option.

4. PAY FIXATION ON DEPUTATION

Para 4.1 — Option I: Pay in Level of Deputation Post

(i) Deputation from Central Government to Central Government:

If the Level (in Pay Matrix) of the ex-cadre post is higher than that of the parent cadre post, an increment shall be given in the Level (in Pay Matrix) of parent cadre post and he/she shall be placed at a Cell equal to the figure so arrived at in the Level (in Pay Matrix) of the ex-cadre post; and if no such Cell is available, he/she shall be placed at the next higher Cell in that Level.

However, if the Cell so arrived at after adding an increment is less than the minimum of the Cell in the Level (in Pay Matrix), the pay will be fixed at the minimum of the Cell in the Level (in Pay Matrix).

(ii) Deputation from Central Government to a body not following CCS Pay Rules:

The pay shall be fixed by the borrowing organisation as per its own rules/instructions subject to mutual agreement.

Para 4.2 — Option II: Pay in Parent Cadre + DDA

The employee draws basic pay in the parent cadre plus Deputation (Duty) Allowance plus Personal Pay, if any. The pay in the parent cadre will be regulated by the lending authority.

5. DEPUTATION (DUTY) ALLOWANCE — RATES

Situation	Rate	Maximum Ceiling
Deputation within the same station	5% of basic pay	Rs. 4,500 per month
Deputation involving change of station	10% of basic pay	Rs. 9,000 per month

Further provisions:

- The above ceilings will further rise by **25%** each time Dearness Allowance increases by **50%**.
- Basic Pay + Deputation (Duty) Allowance shall not exceed the basic pay in the **Apex Level** i.e. **Rs. 2,25,000/-**.
- Deputation (Duty) Allowance is admissible **only upto the fifth year** of deputation.
- **No DDA** is admissible in cases of deputation on **spouse ground** as such deputations are not treated as in public interest.

 **STATUTORY UPDATE (2025):** Vide O.M. dated **04.06.2025**, DoPT has revised the rates of Central Secretariat (Deputation on Tenure) Allowance to AIS Officers and Organised Group 'A' Central Services posted as US, DS & Director in Central Secretariat.

Note: 'Same Station' is determined with reference to the station where the person was on duty before proceeding on deputation. Places falling within the same urban agglomeration of the old headquarters are treated as transfer within the same station.

6. TENURE OF DEPUTATION / FOREIGN SERVICE

Parameter	Provision
Normal tenure	As per RRs of ex-cadre post, or 5 years if RRs are silent
Extension to 6th year	With approval of Secretary (Central Govt.) / Chief Secretary (State Govt.)
Extension to 7th year	With approval of the Minister of the borrowing Ministry/Department
Maximum	No further extension beyond 7th year
DDA admissibility during extended tenure	Only upto 5th year
Initiation of extension	Borrowing organisation must initiate action 6 months before expiry of tenure

7. COOLING OFF PERIOD

Level of Deputation Post	Cooling Off Period
Up to Joint Secretary level (Pay Level 14 in Pay Matrix)	3 years
Additional Secretary level	1 year

Ministries/Departments may not sponsor the name of any officer who is not likely to complete the mandatory cooling off period.

8. DEPUTATION TO STATE GOVERNMENTS – GROUP-WISE GUIDELINES (2024)

🔔 STATUTORY UPDATE (2024):

- **Group 'A':** O.M. dated **15.03.2024** and modification dated **18.09.2024** — Deputation of Group 'A' Central Government Officers to State Governments/UTs — detailed framework with ACC approval for JS and above.
- **Group 'B':** O.M. dated **30.08.2024** — Separate guidelines for Group 'B' officers.

- **Group 'C':** O.M. dated **24.09.2024** — Separate guidelines for Group 'C' employees.
- **Review Directive (2026):** O.M. dated **06.02.2026** directs all Cadre Controlling Authorities to review existing cases of Group 'A' & 'B' officers on ex-cadre deputation for six months or more.

9. MISCELLANEOUS PROVISIONS

Para 9.1 — Technical Resignation and Lien: Consolidated instructions vide O.M. dated **24.11.2022**.

Para 9.2 — Overstay on Deputation: Urgent review of cases of overstay directed vide O.M. dated **22.03.2023**.

Para 9.3 — Crucial Date for Age Limit: Consolidated instructions on procedure for making appointments on deputation basis — crucial date for determining the age-limit vide O.M. dated **16.04.2020**.

Para 9.4 — An employee holding a post in a scale of pay is ineligible for appointment on deputation to a lower scale of pay.

Para 9.5 — Reversion: After giving an advance notice of at least **three months** to the department, the employee may be reverted back to his parent cadre.

TOPIC E: AD-HOC APPOINTMENTS

SECTION II — AD-HOC APPOINTMENTS

Principal Reference: DoPT instructions issued from time to time under Establishment Division; O.M. No. 22011/5/86-Estt.(D) dated **10.04.1989** (Para on ad-hoc promotions); and various clarificatory OMs.

Para 1 – Definition

An ad-hoc appointment is an appointment made as a stop-gap arrangement in the absence of a regular appointee or where the DPC has not been convened. Ad-hoc appointments are purely temporary and do not confer any right to regular appointment.

Para 2 – When Permissible

- (a) Where there is a short-term vacancy or where a regular appointment cannot be made immediately.
- (b) Where the DPC has not met or there is a delay in convening the DPC.
- (c) As a stop-gap arrangement to fill a post that would otherwise remain vacant.

Para 3 – Conditions

- (a) The ad-hoc appointment should be made for a period not exceeding **one year**.
- (b) It should be noted that ad-hoc promotion does not require constitution of DPC. However, the officer to be given ad-hoc promotion should be the **senior-most** eligible in the feeder grade.
- (c) The period of ad-hoc service will not count for the purpose of seniority in the promoted grade.
- (d) Ad-hoc promotions shall be **without prejudice** to the regular seniority of the officers who may be promoted on regular basis by the DPC subsequently.

Para 4 – Regularization of Ad-hoc Promotions

Where the DPC subsequently meets and finds the ad-hoc promotee fit for promotion, his/her ad-hoc service may be regularized. However, the regularization shall be effective only from the date on which the regular vacancy arises and the officer is found fit by the DPC.

TOPIC F: COMPASSIONATE APPOINTMENTS

SECTION III – COMPASSIONATE APPOINTMENTS

Para 1 – Objective

The object of the Scheme is to grant appointment on compassionate grounds to a dependent family member of a Government servant who dies in harness or who is retired on medical grounds, thereby leaving his family in penury and without any means of livelihood, to relieve the family of the Government servant concerned from financial destitution and to help it get over the emergency.

Para 2 – Eligibility

Compassionate appointment may be granted:—

- (a) To a dependent family member of a Government servant who **dies in harness**; or
- (b) To a dependent family member of a Government servant who is **retired on medical grounds** (before attaining the age of **55 years** if the applicant is eligible and there is a cause of financial distress).

Para 3 – Definition of 'Dependent Family Member'

- (a) Spouse; (b) Son (including adopted son); (c) Daughter (including adopted daughter);
- (d) Brother or sister in the case of unmarried Government servant.

🔔 **STATUTORY UPDATE (2016):** Vide O.M. dated **05.09.2016**, DoPT clarified regarding **married son** — a married son can also be considered for compassionate appointment, as marriage does not extinguish the dependency status if other conditions of financial distress are met.

Para 4 – When Appointment is to be given

The compassionate appointment should be made **immediately** to ensure that the family is not left in financial destitution.

Para 5 – Grade/Post of Appointment

- (a) The appointment on compassionate grounds shall be made to **Group 'C'** posts only.

(b) The appointment should be made only in respect of posts carrying the pay in **Pay Level 1 to Pay Level 5** of the Pay Matrix (7th CPC).

(c) The applicant should possess the **educational qualification** prescribed for the post as per the Recruitment Rules.

Para 6 – Ceiling on Vacancies

The appointment on compassionate grounds shall not exceed **5%** of the vacancies falling under **direct recruitment quota** in any Group 'C' post in a given year.

Para 7 – Time Limit for Application

There is **no time limit** for making application for compassionate appointment.

[DoPT instructions provide for considering the applications for compassionate appointments without any time limit.]

Para 8 – Seniority of Compassionate Appointees

(a) The inter-se seniority of persons appointed on compassionate grounds may be fixed with reference to their **date of appointment**.

(b) The person appointed on compassionate ground in a particular year would be placed at the **bottom** of all the candidates recruited/appointed through direct recruitment, promotion etc. in that year, irrespective of the date of joining.

Para 9 – Procedure (Revised vide O.M. dated 23.08.2021)

(a) The Welfare Officer in each Ministry/Department/Office or a senior officer may be deputed to meet the family members of the deceased Government servant and apprise them of the terminal benefits available to the family.

(b) Applications for compassionate appointment received up to **31st December** for appointment cycle in respect of death-in-harness or retirement on medical grounds of Government servant up to **31st December** may be considered in the cycle beginning on **1st January** of the subsequent year.

(c) Cumulative unfilled vacancies up to **31st December** for the appointment cycle beginning on **1st January** of the subsequent year may be included.

(d) The competent authority shall take a decision on the application within a reasonable time, not exceeding **six months** from the date of receipt of the application.

Para 10 – Voluntary Disclosure

All Ministries/Departments are required to make **voluntary disclosure** of information relating to compassionate appointment on their website.

SUMMARY TABLE – KEY DATA POINTS FOR QUICK REVISION

Parameter	Provision
DEPUTATION	
Option exercise	Within 1 month of joining; once exercised – final
DDA – same station	5% of basic pay; max Rs. 4,500 p.m.
DDA – change of station	10% of basic pay; max Rs. 9,000 p.m.
DDA ceiling revision	Rises by 25% each time DA increases by 50%
DDA maximum	Basic Pay + DDA shall not exceed Rs. 2,25,000 (Apex Level)
DDA admissible period	Only upto 5th year
Normal tenure	As per RRs or 5 years
Maximum tenure	7 years (no further extension)
Extension to 6th year	Approval of Secretary/Chief Secretary
Extension to 7th year	Approval of Minister
Cooling off – up to JS level	3 years
Cooling off – Addl. Secretary	1 year
Reversion notice	At least 3 months advance notice
No DDA – spouse ground	Not in public interest

AD-HOC APPOINTMENTS	
Maximum period	Not exceeding 1 year
Eligibility	Senior-most eligible in feeder grade
Seniority	Ad-hoc service does not count for seniority
COMPASSIONATE APPOINTMENTS	
Eligibility	Dependent family member — death in harness / retirement on medical grounds
Post	Group 'C' only — Pay Level 1 to 5
Ceiling	5% of direct recruitment vacancies
Time limit for application	No time limit
Seniority	At bottom of all DR/promotees of that year
Decision timeline	Within 6 months of receipt
Married son	Eligible (O.M. dated 05.09.2016)
Voluntary disclosure	Mandatory on website (O.M. dated 20.05.2019)
Application cycle	Applications up to 31st December → considered from 1st January next year

TOPIC G: CCS (CONDUCT) RULES, 1964 — KEY PROVISIONS

SECTION I — CCS (CONDUCT) RULES, 1964

Notification: G.I.M.H.A. Notification No. 25/4/63-Ests.(A), dated **30th November, 1964** (as amended from time to time)

Authority: In exercise of the powers conferred by the proviso to Article 309 and clause (5) of Article 148 of the Constitution.

Rule 1 — Short Title, Commencement and Application

These rules may be called the Central Civil Services (Conduct) Rules, 1964. They shall apply to every Government servant including every person holding a civil post under the Central Government.

Rule 3 — General

(1) Every Government servant shall at all times —

- (i) maintain absolute **integrity**;
- (ii) maintain **devotion to duty**; and
- (iii) do nothing which is **unbecoming** of a Government servant.

(2) (i) Every Government servant holding a supervisory post shall take all possible steps to ensure the **integrity and devotion to duty** of all Government servants for the time being under his control and authority;

(ii) No Government servant shall, in the performance of his official duties or in the exercise of powers conferred on him, act otherwise than in his **best judgment** except when he is acting under the direction of his official superior;

(iii) Where acting under such direction, shall obtain the direction in writing, wherever practicable;

(iv) Where it is not practicable to obtain the direction in writing, he shall obtain **written confirmation** of the direction as soon thereafter as possible.

(3) (i) No Government servant shall be a member of, or be otherwise associated with, any political party or any organisation which takes part in politics; nor shall he take part in, subscribe in aid of, or assist in any other manner, any political movement or activity.

(ii) It shall be the duty of every Government servant to endeavour to prevent any member of his family from taking part in, subscribing in aid of, or assisting in any other manner any movement or activity which is, or tends directly or indirectly to be, subversive of the Government as by law established.

Rule 3-A — Prohibition of Sexual Harassment of Working Women

(1) No Government servant shall indulge in any act of sexual harassment of any woman at her work place.

(2) "Sexual harassment" includes such unwelcome sexually determined behaviour (whether directly or by implication) as:—

- (i) physical contact and advances; or
- (ii) a demand or request for sexual favours; or
- (iii) making sexually coloured remarks; or
- (iv) showing pornography; or
- (v) any other unwelcome physical, verbal, non-verbal conduct of a sexual nature.

Key Rules — Summary Table

Rule No.	Subject	Key Provision
Rule 3	General	Absolute integrity; devotion to duty; written direction from superior
Rule 3-A	Sexual Harassment	Prohibited — 5 categories of unwelcome conduct
Rule 4	Employment of near relatives in companies/firms	Prior permission required to employ near relatives in companies having official dealings
Rule 5	Taking part in politics and elections	Prohibited — no membership in political parties; no canvassing

Rule 6	Joining of associations	Government servant may form/join associations not opposed to sovereignty/public order
Rule 7	Demonstrations	No participation in any demonstration prejudicial to sovereignty, integrity of India or public order
Rule 8	Connection with press or other media	Shall not own or conduct any newspaper or periodical; no anonymous writing
Rule 9	Criticism of Government	Shall not make adverse criticism of Government policy in public
Rule 10	Evidence before Committee	Prior sanction of Government required to give evidence
Rule 11	Communication of official information	Shall not communicate official information except in accordance with duty
Rule 12	Subscriptions	No collection of funds except with prior sanction
Rule 13	Gifts	Shall not accept/permit family to accept gifts; reporting required above prescribed value
Rule 13(2)	—	Amended vide Notification dated 04.03.2014
Rule 14	Public demonstrations in honour	Shall not encourage
Rule 15	Private trade or employment	Prohibited without prior permission; exceptions for literary/artistic/scientific work
Rule 16	Investments, lending, borrowing	Restrictions on speculation; reporting of transactions exceeding prescribed limits
Rule 17	Insolvency and habitual indebtedness	Shall not permit himself to be guilty of

Rule 18	Movable, immovable and valuable property	Annual property return; reporting acquisitions/disposals above prescribed limits
Rule 19	Vindication of acts and character	Shall not have recourse to Courts or press without prior permission
Rule 20	Canvassing of outside influence	Prohibited
Rule 21	Restriction on consumption of intoxicating drinks and drugs	Strict abidance by law
Rule 22	Prohibition regarding employment of children in factories, etc.	Compliance mandatory

Rule 18 — Immovable Property Return (IPR)

 **STATUTORY UPDATE (December 2024):** Vide D.O. Letter dated **30.12.2024**, DoPT has issued strict instructions regarding timely submission of Annual Immovable Property Return (IPR) by Government servants (latest by **31.01.2025** for the year 2024). Vigilance clearance for the following purposes may be denied to officers who fail to submit IPR within the stipulated time-frame:—

(a) inclusion in the offer list, (b) empanelment, (c) ex-India study leave, (d) any deputation and extension thereof, (e) appointments to sensitive posts, (f) assignments to training programmes except mandatory training, (g) confirmation in service, (h) retirement on VRS, (i) post-retirement commercial employment, (j) any other purpose where vigilance clearance is required.

TOPIC H: CCS (CCA) RULES, 1965 – FRAMEWORK OVERVIEW

SECTION II – CCS (CLASSIFICATION, CONTROL AND APPEAL) RULES, 1965

Notification: G.I.M.H.A. Notification No. 17/65-Ests.(A) dated **01.12.1965** (as amended from time to time)

Key Framework – Overview

Rule No.	Subject	Key Provision
Rule 2	Definitions	Government servant, disciplinary authority, appellate authority
Rule 4	Classification of posts	Group A, B, C (Group D abolished – merged into MTS/Group C)
Rule 10	Penalties – Minor	(i) Censure; (ii) Withholding of promotion; (iii) Recovery from pay; (iv) Withholding of increments
Rule 11	Penalties – Major	(v) Save as provided for in Rule 10, reduction to a lower stage; (vi) Reduction to a lower time scale/grade/post/service; (vii) Compulsory retirement; (viii) Removal from service; (ix) Dismissal from service
Rule 14	Procedure for imposing minor penalties	Reasonable opportunity of making representation; inquiry not mandatory
Rule 16	Procedure for imposing major penalties	Full inquiry mandatory – inquiry officer, presenting officer, defense
Rule 17	Suspension	Deemed suspension on arrest and detention exceeding 48 hours

Rule 19	Appeals	Right to appeal against penalty to appellate authority
Rule 25	Revision	Government may revise any order on its own motion
Rule 27	Review	Power of President to review

Penalties – Complete List

Minor Penalties (Rule 10):

Penalty No.	Penalty
(i)	Censure
(ii)	Withholding of his promotion
(iii)	Recovery from his pay of the whole or part of any pecuniary loss caused by him to the Government by negligence or breach of orders
(iii-a)	Reduction to a lower stage in the time scale of pay by one stage for a period not exceeding 3 years , without cumulative effect and not adversely affecting his pension
(iv)	Withholding of increments of pay

Major Penalties (Rule 11):

Penalty No.	Penalty
(v)	Save as provided for in clause (iii-a), reduction to a lower stage in the time scale for a specified period, with further directions regarding conditions of restoration
(vi)	Reduction to a lower time-scale of pay, grade, post or service

(vii)	Compulsory retirement
(viii)	Removal from service (does not disqualify from future employment under Government)
(ix)	Dismissal from service (disqualifies from future employment under Government)

🔔 **STATUTORY UPDATE (2024):** Vide O.M. dated **26.03.2024**, DoPT has issued consolidated instructions on handling of disciplinary proceedings in respect of Central Civilian employees. The emphasis is on timely completion of proceedings and adherence to prescribed procedures.

TOPIC I: PREMATURE RETIREMENT UNDER FR 56(j) — PERIODIC PERFORMANCE REVIEW

SECTION III — PREMATURE RETIREMENT UNDER FR 56(j) — PERIODIC PERFORMANCE REVIEW

Principal References:

- O.M. No. 25013/03/2019-Estt.A-IV dated **28.08.2020** (Comprehensive Consolidated Guidelines)
- O.M. No. 25013/01/2024-Pers.Policy A-IV dated **27.06.2024** (Periodic Review Directive)
- O.M. No. 25013/01/2024-Pers.Policy A-IV dated **26.07.2024** (Reiteration — Top Priority)

Para 1 — Objective

The objective of FR 56(j)/(l) and Rule 48 of CCS (Pension) Rules, 1972 [now revised as **Rule 42 of CCS (Pension) Rules, 2021**] is to strengthen the administrative machinery by developing responsible and efficient administration at all levels and to achieve efficiency, economy and speed in the disposal of Government functions.

Para 2 — Applicability

Provision	Applicable to	Review Point
FR 56(j)	Group 'A' and Group 'B' officers	On attaining the age of 50 years or on completion of 30 years of qualifying service, whichever is earlier
FR 56(l)	Group 'C' employees (erstwhile Group 'D' also)	On attaining the age of 55 years or on completion of 30 years of qualifying service, whichever is earlier
Rule 42 of CCS (Pension) Rules, 2021 (earlier Rule 48 of 1972 Rules)	All Central Government employees	Provisions parallel to FR 56(j)/(l)

Para 3 — Key Principles (from Consolidated Guidelines dated 28.08.2020)

- (a) The absolute right of the appropriate authority to retire a Government servant prematurely in public interest is recognized by law as settled by the Hon'ble Supreme Court in the case of **UOI & Col. J.N. Sinha [1971 SCR (1) 791]**.
- (b) The decision to retire prematurely shall **not be arbitrary** and shall **not be based on collateral grounds**.
- (c) The review should be based on the **entire service record** of the employee, particularly the APARs for the **preceding 5 years** or the available APARs.
- (d) A **Review Committee** should be duly constituted for this purpose.
- (e) The Government servant shall be given **3 months' notice** in writing or **3 months' pay and allowances in lieu** of such notice.
- (f) The retirement under FR 56(j) does not amount to a punishment and the retiring officer is entitled to **full pensionary benefits**.

Para 4 — Reporting Requirement (2024 Directive)

All Ministries/Departments/Organisations are requested to:—

- Strictly adhere to the timeline mentioned in DoPT's OM dated **28.08.2020**;
- Ensure that employees with **doubtful integrity** or found to be **ineffective** are not allowed to continue in Government;
- Furnish a report to DoPT in prescribed format by **15th day of each month** starting from **July, 2024**.

[O.M. dated **27.06.2024** and reiteration dated **26.07.2024** — accorded "Top Priority"]

TOPIC J: SUPERANNUATION / VOLUNTARY RETIREMENT / RESIGNATION / EXTENSION IN SERVICE

SECTION IV — SUPERANNUATION / VOLUNTARY RETIREMENT / RESIGNATION / EXTENSION IN SERVICE

A. Superannuation

Category	Age of Superannuation
Central Government employees (general)	60 years
Scientists/Professors in certain institutions	62 years (where specifically provided)
CAPF personnel	As per specific rules

B. Voluntary Retirement

- A Government servant may seek voluntary retirement by giving notice of not less than **3 months** in writing to the appointing authority.
- The notice may be accepted or the Government may permit withdrawal of the notice.
- A Government servant who has completed **30 years** of qualifying service may voluntarily retire by giving **3 months' notice**.

- The appointing authority may also require a Government servant to retire in the public interest after giving him **3 months' notice** [FR 56(j)].

C. Resignation

- Resignation from Government service is governed by established administrative instructions.
- The resignation should be clear and unconditional.
- A resignation once accepted **cannot be withdrawn**.
- A Government servant under suspension shall not be permitted to resign.
- Resignation of a Government servant against whom disciplinary proceedings are pending or contemplated should not ordinarily be accepted.

D. Extension in Service beyond Superannuation

- Grant of extension in service beyond the date of superannuation is not normally given as a matter of routine.
- Extension is considered only in **exceptional circumstances** where the services of the officer are absolutely necessary in public interest and no suitable replacement is available.
- Such extensions require approval of the **Appointments Committee of the Cabinet (ACC)** in respect of Group 'A' officers.

TOPIC K: AEBAS & e-HRMS / e-SERVICE BOOK

SECTION V — AEBAS (AADHAAR ENABLED BIOMETRIC ATTENDANCE SYSTEM)

Principal Reference: O.M. No. 11013/13/2023-Pers.Policy-A.III dated **15.06.2024**

Key Instructions:

- (a) All Government employees are required to mark attendance through the Aadhaar Enabled Biometric Attendance System (AEBAS).
- (b) All Ministries/Departments/Organizations (MDOs) are directed to implement AEBAS for attendance of all Government employees.
- (c) The AEBAS system records the biometric attendance of employees through Aadhaar authentication.
- (d) Ministries/Departments shall ensure compliance and regularly monitor attendance data through the system.

SECTION VI – e-HRMS / e-SERVICE BOOK**A. e-HRMS 2.0 (Electronic Human Resource Management System)**

Principal Reference: O.M. dated 26.02.2024 — Timelines for Service Delivery through e-HRMS 2.0

Modules covered: Leave Module, Reimbursement & Allowances, Advances & LTC Module.

All Ministries/Departments are required to ensure implementation within prescribed timelines.

B. e-Service Book

Principal Reference: O.M. dated 17.06.2025 — Implementation of e-Service Book in all Ministries/Departments

All Ministries/Departments are directed to implement e-Service Book for all Government employees to maintain digital service records.

TOPIC L: iGOT KARMAYOGI PLATFORM**SECTION VII – iGOT KARMAYOGI PLATFORM****🔔 STATUTORY UPDATE (2025):**

- O.M. dated **04.07.2025** — Mandatory Course Completion and Comprehensive Assessment on iGOT Karmayogi.
- O.M. dated **29.08.2025** — Guidelines for implementation of the above order.
- O.M. dated **19.08.2025** — Modification in APAR for recording mandatory iGOT Karmayogi courses.
- O.M. dated **05.02.2026** — Mandatory consumption of APAR-linked courses on iGOT Karmayogi Platform.
- O.M. dated **20.01.2026** — Mandatory completion of 'Outreach & Communication for Viksit Bharat' course on iGOT for APAR Cycle 2025-26 by DS & above level officers.

